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County of Alameda
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL, et al.,** Respondents.	**Case No. 26CV191136** **PETITIONER'S REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF OPPOSITION TO DEMURRER** [Evid. Code §§ 452, subds. (c), (d), 453] Date: August 28, 2026 Time: 9:00 a.m. **Assigned for All Purposes to:** Hon. Jenna M. Whitman, Dept. 25

REQUEST FOR JUDICIAL NOTICE

Petitioner Brendan Ngehsi Newanforbi respectfully requests that this Court take judicial notice, pursuant to Evidence Code sections 452, subdivisions (c) and (d), and 453, of the following matters:

Exhibit A: Order Re Motion to Proceed In Forma Pauperis (Dkt. No. 5), filed June 29, 2026, in *Newanforbi v. Serrato*, Case No. 4:26-cv-05953-ASK, United States District Court, Northern District of California (Magistrate Judge Ajay S. Krishnan). This order grants Plaintiff's application to proceed in forma pauperis and, upon mandatory screening under 28 U.S.C. section 1915(e)(2), concludes that the operative complaint—which arises from the same underlying incident and the same April 20, 2026 certification denial at issue in this Petition—is sufficient to state claims for relief. Noticeable under Evidence Code section 452, subdivision (d) (records of any court of record of the United States).

Exhibit B: Assembly Bill No. 1261 (2023-2024 Reg. Sess.), chapter 679, Stats. 2023, as chaptered and filed with the Secretary of State on October 10, 2023, including the Legislative Counsel's Digest printed as a preface thereto. Noticeable under Evidence Code section 452, subdivision (c) (official acts of the legislative department of any state).

RELEVANCE

Exhibit A. Respondent's demurrer argues that Petitioner's factual allegations are conclusory and insufficient to state a cause of action. (Dem. MPA at 13-15.) The screening order is persuasive—though not binding—authority that a federal court, reviewing substantially the same factual allegations based on the same underlying incident and the same certification denial, concluded that those allegations plausibly support inferences of false imprisonment based on fabricated evidence and a plausible retaliation claim arising from the denial itself. (Exhibit A at 3-4.) Petitioner does not contend that the federal order decides the merits of this state-court mandate action or that it binds this Court. Petitioner offers it solely to demonstrate that Respondent's competing factual inferences do not render Petitioner's allegations facially deficient at the pleading stage.

Exhibit B. The Legislative Counsel's Digest of AB 1261 is relevant to the construction of Penal Code section 679.10, subdivision (i)(2), which is squarely at issue on the demurrer to the second cause of action. The Digest describes the written-explanation requirement enacted by AB 1261 as an obligation attaching to any denial of certification—without limitation to cooperation-based denials—and is entitled to great weight in construing the enactment. (*Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1169-1170.)

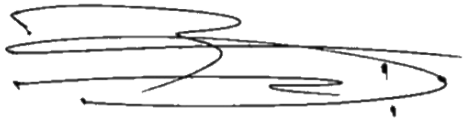
LEGAL BASIS

Evidence Code section 452, subdivision (d) permits judicial notice of "[r]ecords of . . . any

court of this state or any court of record of the United States." (*People v. Preslie* (1977) 70 Cal.App.3d 486, 493; *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 401, 406.) Evidence Code section 452, subdivision (c) permits judicial notice of "[o]fficial acts of the legislative . . . department[] . . . of any state," which includes the Legislative Counsel's Digest. Evidence Code section 453 requires the Court to take judicial notice of these matters when properly requested.

True and correct copies of Exhibits A and B are attached hereto.

Dated: July 13, 2026



BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per

EXHIBIT A

Order Re Motion to Proceed In Forma Pauperis, Newanforbi v. Serrato, No. 4:26-cv-05953-ASK (N.D. Cal. June 29, 2026)

United States District Court
Northern District of California

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

G. SERRATO,

Defendant.

Case No. 26-cv-05953-ASK

ORDER RE MOTION TO PROCEED IN FORMA PAUPERIS

Re: Dkt. No. 2

On June 17, 2026, Plaintiff Brendan Ngehsi Newanforbi filed this civil action and an application to proceed *in forma pauperis*. The Court **GRANTS** Mr. Newanforbi's application to proceed *in forma pauperis*. The Court now screens his complaint pursuant to 28 U.S.C. § 1915, and, for the reasons set forth below, concludes that the operative complaint is sufficient.

I. BACKGROUND

Mr. Newanforbi alleges that, in November 2024, two California Highway Patrol officers "subjected [him] to a false arrest, fabricated material statements in a sworn report, and forced an involuntary blood draw through a warrant procured by those fabrications" in relation to a traffic stop on Interstate 580 East in Livermore, Alameda County. Dkt. 1 at 1 ¶ 2. Based on this November 2024 incident, Mr. Newanforbi submitted a request to Defendant Serrato, the Captain and Commander of the California Highway Patrol ("CHP"), to certify his "Form I-918 Supplement B, U Nonimmigrant Status Certification[.]" *Id.* at 7-8 ¶ 25. Defendant Serrato denied Mr. Newanforbi's certification request on the grounds that the November 2024

> incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code (PC), nor does it meet the standards of the Immigration and Nationality Act Section 101(a)(15)(U)(iii). Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC.

Id. at 8-9 ¶ 29. Mr. Newanforbi brings this civil rights action against Defendant Serrato for denial of his certification request, accusing Defendant Serrato of violating his substantive and procedural due process rights under the Fourteenth Amendment and retaliating against him in violation of the First Amendment.

II. LEGAL STANDARD

The *in forma pauperis* statute provides that the Court shall dismiss the case if at any time the Court determines that the allegation of poverty is untrue, or that the action (1) is frivolous or malicious, (2) fails to state a claim on which relief may be granted, or (3) seeks monetary relief against a defendant who is immune from such relief. 28 U.S.C. § 1915(e)(2).

A complaint is frivolous under § 1915 where the Court lacks subject matter jurisdiction. *See Castillo v. Marshall*, 207 F.3d 15, 15 (9th Cir. 1997) (citation omitted); *see also Pratt v. Sumner*, 807 F.2d 817, 819 (9th Cir. 19987) (recognizing the general proposition that a complaint should be dismissed as frivolous on § 1915 review where subject matter jurisdiction is lacking).

A complaint may also be dismissed for failure to state a claim, because § 1915(e)(2) parallels the language of Federal Rule of Civil Procedure 12(b)(6). *Lopez v. Smith*, 203 F.3d 1122, 1126-27 (9th Cir. 2000). The complaint, therefore, must allege facts that plausibly establish the defendant's liability. *See Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555-57 (2007). When the complaint has been filed by an unrepresented plaintiff, courts must "construe the pleadings liberally . . . to afford the petitioner the benefit of any doubt." *Hebbe v. Pliler*, 627 F.3d 338, 342 (9th Cir. 2010) (cleaned up). Upon dismissal, unrepresented plaintiffs proceeding *in forma pauperis* must be given leave to "amend their complaint unless it is absolutely clear that the deficiencies of the complaint could not be cured by amendment." *Franklin v. Murphy*, 745 F.2d 1221, 1235 n.9 (9th Cir. 1984) (cleaned up); *Lopez v. Smith*, 203 F.3d 1122, 1130-31 (9th Cir. 2000).

III. DISCUSSION

As courts of limited jurisdiction, "federal courts have an independent obligation to ensure that they do not exceed the scope of their jurisdiction." *Henderson ex rel. Henderson v. Shinseki*,

562 U.S. 428, 434 (2011); *Valdez v. Allstate Ins. Co.*, 372 F.3d 1115, 1116 (9th Cir. 2004) (noting that district courts are "obligated to consider sua sponte whether [they] have subject matter jurisdiction"). There are two bases for federal subject matter jurisdiction: (1) federal question jurisdiction under 28 U.S.C. § 1331 and (2) diversity jurisdiction under 28 U.S.C. § 1332. A district court has federal question jurisdiction in "all civil actions arising under the Constitution, laws, or treaties of the United States." *Id.* at § 1331. A cause of action "arises under federal law only when the plaintiff's well-pleaded complaint raises issues of federal law." *Hansen v. Blue Cross of Cal.*, 891 F.2d 1384, 1386 (9th Cir. 1989). A district court has diversity jurisdiction "where the matter in controversy exceeds the sum or value of $75,000 . . . and is between citizens of different states, or citizens of a State and citizens or subjects of a foreign state." *Id.*

Because Mr. Newanforbi's claims arise under federal law, the Court has federal subject matter jurisdiction over his complaint. So, the Court proceeds to determine whether Mr. Newanforbi's complaint states a claim.

"Congress created U nonimmigrant status as part of the Victims of Trafficking and Violence Protection Act of 2000 ('VTVPA')." *Perez Perez v. Wolf*, 943 F.3d 853, 856 (9th Cir. 2019).

> To be eligible for a U visa, a petitioner must establish that he or she: (1) "has suffered substantial physical or mental abuse as a result of having been a victim of qualifying criminal activity"; (2) "possesses information" about qualifying criminal activity; and (3) "has been helpful, is being helpful, or is likely to be helpful" to an authority "investigating or prosecuting" qualifying criminal activity.

Id. at 857. "To apply for a U visa, a petitioner must file with USCIS a Form I-918, Petition for U Nonimmigrant Status." *Id.* That form requires U visa petitioners to "obtain a certification from a Federal, State, or local law enforcement official, prosecutor, judge, or other Federal, State, or local authority investigating criminal activity." *Id.* at 863 (cleaned up). Law enforcement's "decision of whether or not to issue certification to qualify for U Nonimmigrant status is discretionary." *United States v. Biao*, No. 98CR2812-BTM, 2011 WL 607087, at *1 (S.D. Cal. Feb. 11, 2011) (citing *Orosco v. Napolitano,* 598 F.3d 222, 226 (5th Cir.2010)).

Qualifying criminal activity

> involve[es] one or more of the following or any similar activity in violation of Federal, State, or local criminal law: rape; torture; trafficking; incest; domestic violence; sexual assault; abusive sexual contact; prostitution; sexual exploitation; stalking; female genital mutilation; being held hostage; peonage; involuntary servitude; slave trade; kidnapping; abduction; unlawful criminal restraint; false imprisonment; blackmail; extortion; manslaughter; murder; felonious assault; witness tampering; obstruction of justice; perjury; fraud in foreign labor contracting (as defined in section 1351 of Title 18); or attempt, conspiracy, or solicitation to commit any of the above mentioned crimes[.]

8 U.S.C. § 1101(a)(15)(U)(iii). Here, Mr. Newanforbi alleges that he was the victim of the qualifying crimes of false imprisonment, unlawful criminal restraint, felonious assault, and obstruction of justice. Dkt. 1 at 6 ¶ 21. More specifically, Mr. Newanforbi alleges that he was wrongfully arrested, detained, and subjected to a blood test for driving under the influence based on a CHP report "containing four material fabrications[.]" *Id.* at 5 ¶ 17. Because of the fabricated report, Mr. Newanforbi "suffered incarceration at Santa Rita Jail for approximately five days[,]" among other things. *Id.* at 6-7 ¶ 22. Mr. Newanforbi "filed a formal complaint with CHP regarding the officers' conduct" and "a complaint with the Commission on Peace Officer Standards and Training[.]" *Id.* at 7 ¶ 23.

Accepting Mr. Newanforbi's alleged facts as true, his complaint supports the plausible inferences that CHP officers falsely imprisoned him in November 2024 based on fabricated evidence. It also supports the plausible inference that, despite his status as a victim of the qualifying crime of false imprisonment, Defendant Serrato retaliated against him by wrongfully denying his certification request. While Defendant Serrato had discretion to certify the request, he did not have discretion to retaliate against Mr. Newanforbi. Mr. Newanforbi has thus set forth "a short and plain statement of the claim showing that the pleader is entitled to relief" as required by Rule 8 of the Federal Rules of Civil Procedure. Accordingly, the Court concludes that the complaint is sufficient to satisfy § 1915 review.

IV. CONCLUSION

For the reasons set forth above, the allegations in Mr. Newanforbi's complaint are sufficient under 28 U.S.C. § 1915(e)(2). The Clerk of Court shall issue the summons. Furthermore, the U.S. Marshal for the Northern District of California shall serve, without prepayment of fees, a copy of the complaint, any amendments or attachments, and this Order upon Defendant Serrato.

While this case is pending, Mr. Newanforbi must promptly inform the Court of any change of address. Failure to do so may result in dismissal of this action.

In amending the complaint, Mr. Newanforbi may wish to contact the Federal Pro Bono Project's Help Desk for assistance—a free service for unrepresented litigants—by calling (415) 782-8982 to make an appointment. While the Help Desk does not provide legal representation, a licensed attorney may assist Mr. Newanforbi in determining whether there are viable claims, and how to properly plead them.

Mr. Newanforbi may also wish to consult a manual the court has adopted to assist unrepresented litigants in presenting their case. This manual, and other free information for unrepresented litigants, is available online at: https://cand.uscourts.gov/pro-se-litigants/.

IT IS SO ORDERED.

Dated: June 29, 2026

AJAY S. KRISHNAN
United States Magistrate Judge

United States District Court
Northern District of California

EXHIBIT B

Assembly Bill No. 1261, Chapter 679, Stats. 2023 (Approved by Governor October 10, 2023)

Assembly Bill No. 1261

CHAPTER 679

An act to amend Sections 679.10 and 679.11 of, and to add Section 679.13 to, the Penal Code, relating to crime.

[Approved by Governor October 10, 2023. Filed with Secretary of State October 10, 2023.]

LEGISLATIVE COUNSEL'S DIGEST

AB 1261, Santiago. Crime: witnesses and informants.

Existing state law requires, upon request by specified persons, that a certifying official from a certifying entity, as defined, certify "victim helpfulness" or "victim cooperation" on specified federal supplemental forms relating to immigration when the person was a victim of a qualifying criminal activity or human trafficking, and has, is, or is likely to be helpful or cooperative regarding the investigation or prosecution of that qualifying criminal activity, as specified.

This bill would specify that a person submitting those forms does not have to be present in the United States at the time of filing, and would require the certifying entity to forward the form to the victim or other specified individuals without requiring the victim to provide government-issued identification. The bill would require a certifying entity that does not certify the form regarding "victim helpfulness" to provide a written explanation for the denial of the certification. The bill would require a certifying entity to certify that form for direct victims, indirect victims, and bystander or witness victims, as specified. The bill would prohibit a certifying entity from refusing to complete either of those forms for specified reasons, including, among others, the informant's criminal history information or immigration history. The bill would require the certifying entities to process those forms within 7 days if the victim asserts a qualifying family member of the victim will lose eligibility for specified immigration statuses within 60 days. By imposing additional duties on local law enforcement, this bill would impose a state-mandated local program.

Existing federal law provides a petition form to request temporary immigration benefits for a person who is a witness or informant, as specified.

This bill would authorize a certifying official from a certifying entity, as defined, to certify that a

person is a witness or informant on that federal petition form when the person is an informant with reliable information about an important aspect of a crime or pending commission of a crime, the person is willing to share that information with law enforcement officials or become a witness in court, and the person's presence in the United States is important and leads to the successful investigation or prosecution of that crime.

The California Constitution requires the state to reimburse local agencies and school districts for certain costs mandated by the state. Statutory provisions establish procedures for making that reimbursement.

This bill would provide that, if the Commission on State Mandates determines that the bill contains costs mandated by the state, reimbursement for those costs shall be made pursuant to the statutory provisions noted above.

Digest Key

Vote: majority Appropriation: no Fiscal Committee: yes Local Program: yes

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Bill Text

THE PEOPLE OF THE STATE OF CALIFORNIA DO ENACT AS FOLLOWS:

SECTION 1. Section 679.10 of the Penal Code is amended to read:

679.10. (a) For purposes of this section, a "certifying entity" is any of the following:

(1) A state or local law enforcement agency, including, without limitation, the police department of the University of California, a California State University campus, or the police department of a school district, established pursuant to Section 38000 of the Education Code.

(2) A prosecutor.

(3) A judge.

(4) Any other authority that has responsibility for the detection or investigation or prosecution of a qualifying crime or criminal activity.

(5) Agencies that have criminal detection or investigative jurisdiction in their respective areas of expertise, including, but not limited to, child protective services, the Civil Rights Department, and the Department of Industrial Relations.

(b) For purposes of this section, a "certifying official" is any of the following:

(1) The head of the certifying entity.

(2) A person in a supervisory role who has been specifically designated by the head of the certifying entity to issue Form I-918 Supplement B certifications on behalf of that agency.

(3) A judge.

(4) Any other certifying official defined under Section 214.14 (a)(2) of Title 8 of the Code of Federal Regulations.

(c) "Qualifying criminal activity" has the same meaning as qualifying criminal activity pursuant to Section 101(a)(15)(U)(iii) of the federal Immigration and Nationality Act which includes, but is not limited to, the following crimes:

(1) Rape.

(2) Torture.

(3) Human trafficking.

(4) Incest.

(5) Domestic violence.

(6) Sexual assault.

(7) Abusive sexual conduct.

(8) Prostitution.

(9) Sexual exploitation.

(10) Female genital mutilation.

(11) Being held hostage.

(12) Peonage.

(13) Perjury.

(14) Involuntary servitude.

(15) Slavery.

(16) Kidnapping.

(17) Abduction.

(18) Unlawful criminal restraint.

(19) False imprisonment.

(20) Blackmail.

(21) Extortion.

(22) Manslaughter.

(23) Murder.

(24) Felonious assault.

(25) Witness tampering.

(26) Obstruction of justice.

(27) Fraud in foreign labor contracting.

(28) Stalking.

(d) A "qualifying crime" includes criminal offenses for which the nature and elements of the offenses are substantially similar to the criminal activity described in subdivision (c), and the attempt, conspiracy, or solicitation to commit any of those offenses.

(e) A "representative fully accredited by the United States Department of Justice" is a person who is approved by the United States Department of Justice to represent individuals before the Board of Immigration Appeals, the immigration courts, or the Department of Homeland Security. The representative shall be a person who works for a specific nonprofit, religious, charitable, social service, or similar organization that has been recognized by the United States Department of Justice to represent those individuals and whose accreditation is in good standing.

(f) Upon the request of a victim, licensed attorney representing the victim, or representative fully

accredited by the United States Department of Justice authorized to represent the victim in immigration proceedings, a state or local law enforcement agency with whom the victim had filed a police report shall provide a copy of the police report within seven days of the request.

(g) (1) Upon the request of the victim, victim's family member, licensed attorney representing the victim, or representative fully accredited by the United States Department of Justice authorized to represent the victim in immigration proceedings, a certifying official from a certifying entity shall certify victim helpfulness on the Form I-918 Supplement B certification, when the victim was a victim of a qualifying criminal activity and has been helpful, is being helpful, or is likely to be helpful to the detection or investigation or prosecution of that qualifying criminal activity. The certifying entity shall forward completed Form I-918 Supplemental B certification to the victim, victim's family member, licensed attorney representing the victim, or representative fully accredited by the United States Department of Justice authorized to represent the victim in immigration proceedings without requiring the victim to provide government-issued identification.

(2) A victim who submits a Form I-918 Supplement B certification to a certifying entity does not have to be present in the United States at time of submitting the certification request or filing the petition with the government and may apply for certification while outside of the United States.

(h) For purposes of determining helpfulness pursuant to subdivision (g), there is a rebuttable presumption that a victim is helpful, has been helpful, or is likely to be helpful to the detection or investigation or prosecution of that qualifying criminal activity, if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement. If the victim reasonably asserts they were unaware of a request for cooperation, their failure to cooperate does not rebut the presumption of helpfulness.

(i) (1) The certifying official shall fully complete and sign the Form I-918 Supplement B certification and, regarding victim helpfulness, include specific details about the nature of the crime investigated or prosecuted and a detailed description of the victim's helpfulness or likely helpfulness to the detection or investigation or prosecution of the criminal activity.

(2) If a certifying entity does not certify a Form I-918 Supplement B certification, they shall provide a written explanation for the denial of the Form I-918 Supplement B certification. The written denial shall include specific details of any reasonable requests for cooperation and a detailed description of how the victim refused to cooperate.

(j) (1) A certifying entity shall process a Form I-918 Supplement B certification within 30 days of request, unless the noncitizen is in removal proceedings, in which case the certification shall be processed within 7 days of the first business day following the day the request was received.

(2) A certifying agency shall process a Form I-918 Supplement B certification within 7 days of the first business day following the day the request was received if the victim asserts a qualifying

family member of the victim will lose eligibility for U nonimmigrant status in 60 days or fewer because the victim's noncitizen sibling will turn 18 years of age, the victim's noncitizen child will turn 21 years of age, or the victim will turn 21 years of age.

(k) (1) A current investigation, the filing of charges, an apprehension of the suspect who committed the qualifying crime, closing of a case, and a prosecution or conviction are not required for the victim to request and obtain the Form I-918 Supplement B certification from a certifying official.

(2) A certifying official shall not refuse to complete the Form I-918 Supplement B certification or to otherwise certify that a victim has been helpful, solely because a case has already been prosecuted or otherwise closed, or because the time for commencing a criminal action has expired.

(3) A certifying entity shall not refuse to complete the Form I-918 Supplement B certification and provide it to the victim, the victim's family member, licensed attorney representing the victim, or representative fully accredited by the United States Department of Justice authorized to represent the victim in immigration proceedings for any of the following reasons:

(A) The victim's criminal history information.

(B) The victim's immigration history.

(C) The victim's gang membership or gang affiliation.

(D) The certifying entity's belief that the Form I-918 Supplement B petition will not be approved by United States Citizenship and Immigration Services.

(E) The victim has an open case with another certifying entity.

(F) The extent of the harm the victim suffered.

(G) The victim's inability to produce a crime report from a law enforcement agency.

(H) The victim's cooperation or refusal to cooperate in a separate case.

(l) A certifying official may only withdraw the certification if the victim refuses to provide information and assistance when reasonably requested.

(m) A certifying entity is prohibited from disclosing the immigration status of a victim or person requesting the Form I-918 Supplement B certification, except to comply with federal law or legal process, or if authorized by the victim or person requesting the Form I-918 Supplement B certification.

(n) A certifying entity that receives a request for a Form I-918 Supplement B certification shall

report to the Legislature, on or before January 1, 2017, and annually thereafter, the number of victims that requested Form I-918 Supplement B certifications from the entity, the number of those certification forms that were signed, and the number that were denied. A report pursuant to this subdivision shall comply with Section 9795 of the Government Code.

(o) (1) A certifying entity may certify a Form I-918 Supplement B certification for direct victims, indirect victims, and bystander or witness victims.

(2) A direct victim is any person who has suffered direct harm or who is directly and proximately harmed as a result of the criminal activity.

(3) (A) An indirect victim is a qualifying family member of a direct victim if the direct victim is incompetent, incapacitated, or deceased, including spouses, unmarried children under the age of 21, parents if the direct victim was under the age of 21, and siblings under the age of 18 if the direct victim was under 21 years of age. Indirect victims shall cooperate in the investigation or prosecution but are not required to possess information about the crime itself.

(B) Indirect victim cooperation includes parents who make their children available to communicate with the certifying entity.

(4) A bystander or witness victim is any individual who was not the direct target of a crime, but who nevertheless suffered unusually direct injury as a result of the qualifying crime.

SEC. 2. Section 679.11 of the Penal Code is amended to read:

679.11. (a) For purposes of this section, a "certifying entity" is any of the following:

(1) A state or local law enforcement agency, including, without limitation, the police department of the University of California, a California State University campus, or the police department of a school district, established pursuant to Section 38000 of the Education Code.

(2) A prosecutor.

(3) A judge.

(4) The Department of Industrial Relations.

(5) Any other state or local government agencies that have criminal, civil, or administrative investigative or prosecutorial authority relating to human trafficking.

(b) For purposes of this section, a "certifying official" is any of the following:

(1) The head of the certifying entity.

(2) A person in a supervisory role who has been specifically designated by the head of the certifying entity to issue Form I-914 Supplement B declarations on behalf of that agency.

(3) A judge.

(4) Any other certifying official defined under Section 214.14(a)(2) of Title 8 of the Code of Federal Regulations.

(c) "Human trafficking" has the same meaning as "severe forms of trafficking in persons" pursuant to Section 7102 of Title 22 of the United States Code and includes either of the following:

(1) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age.

(2) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

(d) "Human trafficking" also includes criminal offenses for which the nature and elements of the offenses are substantially similar to the criminal activity described in subdivision (c), and the attempt, conspiracy, or solicitation to commit any of those offenses.

(e) A "representative fully accredited by the United States Department of Justice" is a person who is approved by the United States Department of Justice to represent individuals before the Board of Immigration Appeals, the immigration courts, or the Department of Homeland Security. The representative shall be a person who works for a specific nonprofit, religious, charitable, social service, or similar organization that has been recognized by the United States Department of Justice to represent those individuals and whose accreditation is in good standing.

(f) (1) Upon the request of the victim, victim's family member, licensed attorney representing the victim, or representative fully accredited by the United States Department of Justice authorized to represent the victim in immigration proceedings, a certifying official from a certifying entity shall certify victim cooperation on the Form I-914 Supplement B declaration, when the victim was a victim of human trafficking and has been cooperative, is being cooperative, or is likely to be cooperative to the investigation or prosecution of human trafficking. The certifying entity shall forward completed Form I-914 Supplemental B certification to the victim, victim's family member, licensed attorney representing the victim, or representative fully accredited by the United States Department of Justice authorized to represent the victim in immigration proceedings without requiring the victim to provide government-issued identification.

(2) A victim who submits a Form I-914 Supplement B declaration to a certifying entity does not have to be present in the United States at time of submitting the certification request or filing the

petition with the government and may apply for certification while outside of the United States.

(g) For purposes of determining cooperation pursuant to subdivision (f), there is a rebuttable presumption that a victim is cooperative, has been cooperative, or is likely to be cooperative to the investigation or prosecution of human trafficking, if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement. If the victim reasonably asserts they were unaware of a request for cooperation, their failure to cooperate does not rebut the presumption of helpfulness.

(h) The certifying official shall fully complete and sign the Form I-914 Supplement B declaration and, regarding victim cooperation, include specific details about the nature of the crime investigated or prosecuted and a detailed description of the victim's cooperation or likely cooperation to the detection, investigation, or prosecution of the criminal activity.

(i) (1) A certifying entity shall process a Form I-914 Supplement B declaration within 30 days of request, unless the noncitizen is in removal proceedings, in which case the declaration shall be processed within 7 days of the first business day following the day the request was received.

(2) A certifying agency shall process a Form I-918 Supplement B certification within 7 days of the first business day following the day the request was received if the victim asserts a qualifying family member of the victim will lose eligibility for T nonimmigrant status in 60 days or fewer because the victim's noncitizen sibling will turn 18 years of age, the victim's noncitizen child will turn 21 years of age, or the victim will turn 21 years of age.

(j) (1) A current investigation, an apprehension of the suspect who committed the qualifying crime, the filing of charges, closing of a case, or a prosecution or conviction is not required for the victim to request and obtain the Form I-914 Supplement B declaration from a certifying official.

(2) A certifying official shall not refuse to complete the Form I-914 Supplement B declaration and provide it to the victim, the victim's family member, licensed attorney representing the victim, or representative fully accredited by the United States Department of Justice authorized to represent the victim in immigration proceedings or to otherwise certify that a victim has been helpful, solely because a case has already been prosecuted or otherwise closed, or because the time for commencing a criminal action has expired.

(3) A certifying entity shall not refuse to complete the Form I-914 Supplement B declaration for any of the following reasons:

(A) The victim's criminal history information.

(B) The victim's immigration history.

(C) The victim's gang membership or gang affiliation.

(D) The certifying entity's belief that the Form I-914 Supplement B petition will not be approved by United States Citizenship and Immigration Services.

(E) The victim has an open case with another certifying entity.

(F) The certifying entity's belief that the victim is eligible for relief or protection under Section 679.10 or any other provision of law.

(G) The victim's inability to produce a crime report from a law enforcement agency.

(H) The victim's cooperation or refusal to cooperate in a separate case.

(k) A certifying official may only withdraw the certification if the victim refuses to provide information and assistance when reasonably requested.

(l) A certifying entity is prohibited from disclosing the immigration status of a victim or person requesting the Form I-914 Supplement B declaration, except to comply with federal law or legal process, or if authorized by the victim or person requesting the Form I-914 Supplement B declaration.

(m) A certifying entity that receives a request for a Form I-914 Supplement B declaration shall report to the Legislature, on or before January 1, 2018, and annually thereafter, the number of victims who requested Form I-914 Supplement B declarations from the entity, the number of those declaration forms that were signed, and the number that were denied. A report pursuant to this subdivision shall comply with Section 9795 of the Government Code.

SEC. 3. Section 679.13 is added to the Penal Code, to read:

679.13. (a) For purposes of this section, a "certifying entity" is any of the following:

(1) A state or local law enforcement agency, including, without limitation, the police department of the University of California, a California State University campus, or the police department of a school district, established pursuant to Section 38000 of the Education Code.

(2) A prosecutor.

(3) A judge.

(4) Any other authority that has responsibility for the detection or investigation or prosecution of a qualifying crime or criminal activity.

(5) Agencies that have criminal detection or investigative jurisdiction in their respective areas of expertise, including, but not limited to, child protective services, the Civil Rights Department, and the Department of Industrial Relations.

(b) For purposes of this section, a "certifying official" is any of the following:

(1) The head of the certifying entity.

(2) A person in a supervisory role who has been specifically designated by the head of the certifying entity to issue Form I-854A certifications on behalf of that agency.

(3) A judge.

(4) Any other certifying official defined under Section 214.14 (a)(2) of Title 8 of the Code of Federal Regulations.

(c) "Qualified criminal informant" is an individual who meets the following requirements:

(1) The informant must have reliable information about an important aspect of a crime or pending commission of a crime.

(2) The informant must be willing to share that information with United States law enforcement officials or become a witness in court.

(3) The informant's presence in the United States is important and leads to the successful investigation or prosecution of that crime.

(d) A certifying entity may apply for and may certify a Form I-854A certification for a qualified criminal informant. A qualified informant does not have to be present in the United States for certification pursuant to this section.

(e) The certifying official shall fully complete and sign the Form I-854A certification and, regarding the qualified criminal informant's helpfulness, include specific details about the nature of the crime investigated or prosecuted and a detailed description of the qualified criminal informant's helpfulness or likely helpfulness to the detection or investigation or prosecution of the criminal activity.

(f) A certifying official may only withdraw the certification if the qualified criminal informant refuses to provide information and assistance when reasonably requested.

(g) A certifying entity is prohibited from disclosing the immigration status of the qualified criminal informant for whom Form I-854A certification has been completed, except to comply with federal law or legal process, or if authorized by the qualified criminal informant.

SEC. 4. If the Commission on State Mandates determines that this act contains costs mandated by the state, reimbursement to local agencies and school districts for those costs shall be made pursuant to Part 7 (commencing with Section 17500) of Division 4 of Title 2 of the Government Code.